

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to transit planning and anti-displacement protections.

PETITION OF:

NAME:

Liz Miranda

DISTRICT/ADDRESS:

Second Suffolk

SENATE No.

By Ms. Miranda, a petition (accompanied by bill) (subject to Joint Rule 12) of Liz Miranda for legislation relative to transit planning and anti-displacement protections. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to transit planning and anti-displacement protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws is hereby amended by inserting after
2 section 31 the following section:-

3 Section 31A. (a) For purposes of this section, the following words shall have the
4 following definitions:

5 “Anti-displacement community”, a census tract meeting two or more of the following
6 criteria at any point during the preceding 5 years:

7 (i) The annual median household income is 65 percent or less of the statewide annual
8 median household income;

9 (ii) Minorities make up 40 percent or more of the population

10 (iii) The poverty rate is 1.5 times the state average

(iv) The census tract has experienced a five-year increase in median gross rent exceeding the statewide average by at least 20 percentage points, as determined by the executive office of housing and livable communities.

“Affordable housing unit”, homeownership or rental housing which is restricted to occupancy by low or moderate income households of 1 or more persons and for which the sale price or rent is affordable as defined by the criteria for inclusion in the department's subsidized housing inventory or consistent with funding sources.

(b) Notwithstanding any general or special law to the contrary, any public or private entity responsible for selecting tenants for an affordable housing unit may establish a preference for applicants who have resided in a designated anti-displacement community within the same municipality as the housing for which they are applying for a continuous period of not less than 12 months during the preceding 5 years.

SECTION 2. Chapter 23B of the General Laws is hereby amended by inserting after section 31A the following section:-

Section 31B. (a) The Executive Office of Housing and Livable Communities shall develop, maintain, and annually update a publicly available statewide Displacement Risk Index to identify census tracts at risk of residential displacement, with consideration as to whether said census tracts meet the criteria of an anti-displacement community pursuant to Section 31A of Chapter 40B. The Executive Office shall promulgate regulations for establishing the methodology of identifying such communities and make publicly available their findings while ensuring compliance with state and federal fair housing requirements. The displacement risk

index shall be produced in consultation with the massachusetts black and latino legislative caucus and the secretary of transportation.

(b) Nothing in this section shall be construed to permit discrimination on the basis of race, color, national origin, religion, sex, disability, familial status, age, sexual orientation, gender identity, military or veteran status, or any other protected classification under federal or state law.

SECTION 3. Chapter 6C of the General Laws is hereby amended by inserting after section 11 the following section:-

Section 11A. (a) For the purposes of this section, the following terms shall mean the following:-

“Major transit infrastructure project”, any transit line extension, fixed-guideway transit project, bus rapid transit project, commuter rail project, passenger rail project, major transit station reconstruction, or transit-oriented development project receiving discretionary state financial assistance.

(b) Prior to approval of discretionary state financial assistance for a major transit infrastructure project or transit line extension located within an area identified as being at risk by the statewide displacement index, the project sponsor shall prepare an anti-displacement plan detailing the measures taken by the sponsor to prevent displacement in the community in which the project is located. The Secretary of Transportation and the Secretary of Housing and Livable Communities shall jointly review each Anti-Displacement Plan prior to approving state financial assistance and may require revisions as a condition of funding. A project located partially or wholly within an area identified by the Displacement Risk Index as being at elevated or severe

risk of displacement shall not receive discretionary state transportation funding unless the Secretaries determine that the anti-displacement plan put forward by the sponsor adequately mitigates the risk of displacement.

(c) (i) Prior to the approval of an Anti-Displacement Plan, the project sponsor shall conduct not fewer than 1 public hearing within the municipality in which the proposed project is located. Notice of the hearing shall be published not less than 30 days prior to the hearing and shall include information regarding the proposed project, the Anti-Displacement Plan, and the manner in which members of the public may review the plan and submit written comments.

(ii) The project sponsor shall make the proposed Anti-Displacement Plan publicly available not less than 30 days prior to the public hearing and shall accept written public comments for a period ending not less than 14 days after the public hearing.

(iii) Prior to approving an Anti-Displacement Plan, the secretary of transportation and the secretary of housing and livable communities shall consider all written and oral comments made during the hearing or received during the public comment period. The project sponsor shall prepare a written summary of public comments and describe any revisions made to the Anti-Displacement Plan in response to those comments.

SECTION 4. The Executive Office of Housing and Livable Communities shall promulgate regulations necessary to implement this act not later than 180 days after the effective date of this act.

SECTION 5. Nothing in this act shall be construed to limit, delay, or otherwise impair a municipality's obligations under section 3A of chapter 40A or any regulations promulgated thereunder. The provisions of this act shall be construed to supplement those requirements by

- 76 encouraging housing stability and preventing the involuntary displacement of existing residents
- 77 in communities experiencing significant public investment.